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General Comment

It is imperative that we do not allow AI engines to take advantage of loopholes in copyright law before it is too late. The AI systems made by tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace. This stifles individual innovation and will also negatively impact the economy, as many of these creators rely on their work being marketable and will not spend money they haven't made.

That said, as AI encroaches on more and more of our daily life, and has some genuine uses, a proposed plan is as follows:

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

Thank you for taking the time to consider our perspective.